SECOND AMENDMENT TO SOLAR SERVICES AGREEMENT

THIS SECOND AMENDMENT (this "**Agreement**" or "**Second Amendment**") is entered into as of 1st May, 2021 (the "**Second Amendment Effective Date**"),

BETWEEN

CrossBoundary Energy Nigeria Ltd, a company incorporated in the Federal Republic of Nigeria and having its registered address at 6th Floor, Landmark Towers, Water Corporation Road, Victoria Island, Lagos, Nigeria ("**Seller**")

And

Nigerian Breweries Plc, a company incorporated in the Federal Republic of Nigeria and having its registered address at 1, Abebe Village Road, lganmu, Lagos, Nigeria ("**Buyer**"),

each a "**Party**" and together, the "**Parties**."

RECITALS

A. Buyer and Seller entered into a Solar Services Agreement ("**SSA**") dated December 11, 2018 in connection with the design, construction and operation of a electric generating photovoltaic solar power facility ("**Facility**") for the benefit of the Buyer. Under this Agreement, the Seller installed a facility with total solar capacity of 646 kWp;

B. Buyer and Seller amended the SSA by mutual agreement on February 13, 2019;

C. Buyer and Seller hereby seek to further amend the SSA as set forth in this Second Amendment;

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions and Interpretation**.

1.1. "**Ama Premises**" refers to Buyer's operational premises located at Amaeke Ngwo 9th Mile, 400281 Enugu;

1.2. "**Capacity Expansion Works**" means the works required to add additional Solar PV capacity and a Battery Energy Storage System ("BESS") to the Facility;

1.3. "**Ibadan Premises**" refers to Buyer's operational premises located at KM 3 New lfe Road, Ibadan, Oyo State, Nigeria;

1.4. "**Second Amendment Effective Date**" means the date of signature of this Agreement.

Unless otherwise defined in this Second Amendment, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA. The rules of interpretation set forth in the SSA shall apply to this Second Amendment;

2. **SSA Amendments.** Unless expressly specified otherwise, the following amendments to the SSA shall be effective from the Second Amendment Effective Date:

2.1. **Revised Solar Discount.** The value of the Solar Discount as set forth in Exhibit C of the SSA is hereby amended from 10% and restated as 15%, provided the conditions recorded in Clause 2.2 of this Agreement

(the "**Conditions**") are fulfilled. In the event of a failure to satisfy the Conditions, the Solar Discount shall revert to 10% as outlined in Exhibit C of the SSA.

2.2. **Conditions.** Seller agrees to amend the Solar Discount as outlined in clause 2.1 above, subject to the following Conditions being satisfied:

- The Buyer and Seller would have entered into a Solar Services Agreement on or before 1 August 2021 (or any other agreed period) for the development of solar energy generation facility at the Buyer's Ama Premises, consisting of an indicative Solar PV size of 4,000 kWp and an indicative BESS size of 500 kWh;

3. **No Defaults.** No Party is in default under the SSA and, to the best of each Party's knowledge, no facts or circumstances exist which, with the passage of time or the giving of notice or both, would constitute a default or breach by any Party under the SSA. As of the Second Amendment Effective Date, except for any amounts accrued for Energy Output delivered or available to be delivered to Buyer since the Commercial Operation Date and not yet paid, neither Party owes any amount to the other under the SSA, and each Party waives any claims it may have related to Energy Output or costs incurred by Buyer prior to the Commercial Operation Date.

4. **No Modification to SSA**. Other than the amendment described in clause 2.1 of this Second Amendment, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

5. **Miscellaneous**. This Second Amendment shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended in writing, signed by the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitutes one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Second Amendment constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Second Amendment Effective Date.

NIGERIAN BREWERIES PLC:

By:_____

Name: Rob Kleinjan

Title: Finance Director

By:_____

Name: Uaboi Agbebaku

Title: Company Secretary / Legal Director

CROSSBOUNDARY ENERGY NIGERIA LIMITED:

By:_____

Name: Matthew Tilleard

Title: Managing Partner

By:_____

Name:

Title: